

OREGON STATE HOSPITAL

POLICY

SECTION 2: Clinical Support **POLICY: 2.010**

SUBJECT: Notification Regarding Fire-Setters and Arsonists

POINT PERSON: Director of Social Work

APPROVED: Sara Walker, MD  **DATE: DECEMBER 17, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy concerns the required notifications to other entities that Oregon State Hospital (OSH) must complete regarding patients committed to OSH for arson or arson-related activity.
- B. This policy applies to staff within the Social Work department.

II. POLICY

- A. In accordance with Oregon Revised Statute 476.730, regardless of where a patient discharges, OSH will notify the State Fire Marshall and Oregon State Police (OSP) before a patient committed to OSH for arson or arson-related activity is discharged.
 - 1. This includes patients who are civilly committed due to arson or arson-related activity, but not actually criminally charged with said activity.
 - 2. This policy does not apply to patients who have prior history of arson or arson-related activity but are not currently committed to OSH for said activity.
- B. OSH will also immediately notify the State Fire Marshall and OSP when the patient goes on unauthorized leave.
- C. The designated social worker must complete notifications as indicated in the applicable Social Work Department protocol.
- D. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services,

and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.

- E. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH FORMS

OSH Notification of Release or Escape of Patient Committed to OSH for Arson of Attempted Arson Activity [Social Work Department Form]

V. RELATED OSH POLICIES AND PROTOCOLS

6.013 Discharge and Conditional Release Planning

8.018 Unauthorized Leave Events

VI. REFERENCES

Oregon Revised Statute § 476.730.